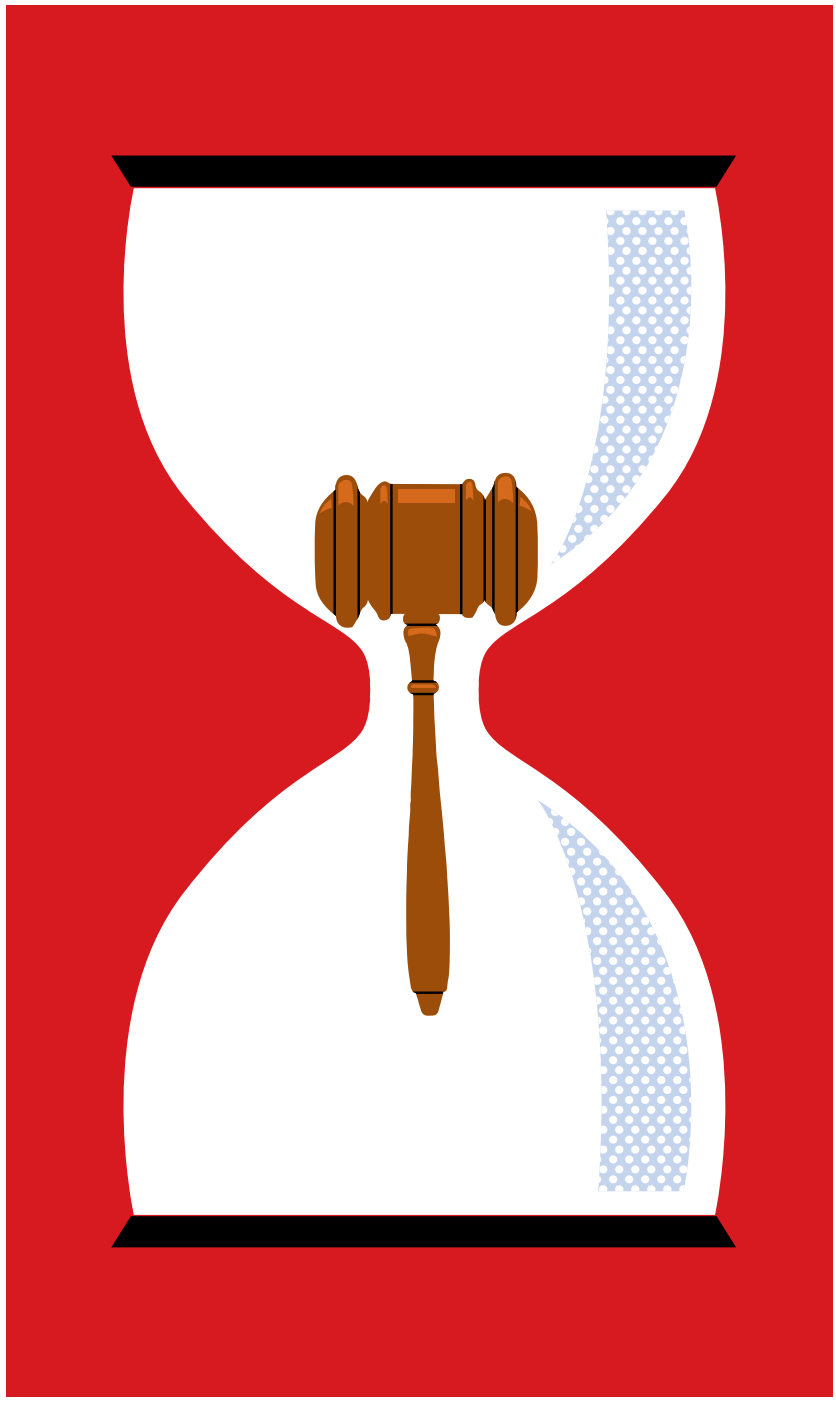


A STAGGERINGLY DISPROPORTIONATE NUMBER OF CRIMINAL CASES FLOOD THE LOWER COURTS, AN INDICATOR THAT THE POOREST AMONGST US LANGUISH AS UNDERTRIALS...

courts has done little to expedite disposal of cases, so newer methods must be devised. A time-work study by the Daksh Centre of Excellence for Law and Technology with a few magistrates and civil courts in Karnataka showed that 52 per cent of the time of a criminal judge and 48 per cent of a civil judge was spent in calling and adjourning cases. If this administrative work is given to a panel of retired magistrates, the trial courts can focus on the actual disposal of cases and instantly double their productivity. It is equally important to check the inflow of cases. Simple amendments that make the grant of bail automatic and simpler will drastically reduce the clogging of criminal courts and the high courts. Stringent bail conditions have failed to reduce crime and vastly increased corruption. It is also necessary to rethink whether the dishonour of a cheque should continue to be a crime.

JUDICIAL APPOINTMENTS

Out of a sanctioned strength of 1,098 high court judges, 402 posts remain vacant, the situation being particularly dire in some courts. The badly drafted provisions to create the National Judicial Appointments Commission were rightly struck down as they would have been unworkable. Till the Constitution is amended again, the current collegium system must continue. It is a myth that the executive has no say in judicial appointments. Article 224A of the Constitution enables retired judges to be appointed as ad hoc judges for a short term. There is no reason why this provision cannot be utilised and their expertise used to clear the backlog of cases that are over 10 years old.

TRIBUNALS AND JUSTICE

The early 1990s saw the beginning of creating tribunals with the ostensible purpose of reducing the workload of the courts by providing specialised fora for faster disposal of cases. Apart from the traditional tax tribunals, banking, service law, company law, patents, trademark and a host of other areas came to be adjudicated by tribunals.